

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/24/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0006536

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: SOO YOUNG KIM, ET AL vs. DEFENDANT: HARRIGAN WEIDENMULLER COMPANY	
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NATURE OF PROCEEDINGS: DEMURRER

RULING

This matter was called on June 12, 2026, as regularly scheduled in this department. The matter was continued to July 24, 2026, at the request of Defendant, for argument.

On July 17, 2026, the parties filed a joint stipulation to request a second continuance of hearing of the demurrer to continue with settlement discussions. However, they did not file a proposed order with the stipulation.

The request is GRANTED. The hearing on Defendant's demurrer is continued to October 2, 2026, at 130 pm in this department,.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/24/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0008688

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: JONAS OPPEDAL

vs.

DEFENDANT: RIVIAN AUTOMOTIVE LLC,
A DELAWARE LIMITED LIABILITY
COMPANY

NATURE OF PROCEEDINGS: 1) MOTION – COMEPL - DISCOVERY FACILITATOR
PROGRAM

2) MOTION – COMPEL ARBITRATION

RULING

Defendant Rivian Automotive LLC’s motion to compel arbitration is **GRANTED**. This action is stayed pending resolution of the arbitration.

Allegations in Plaintiff’s Complaint

Plaintiff Jonas Oppedal filed his Complaint against Defendant Rivian Automotive LLC (“Rivian Automotive”) on December 30, 2025, alleging that on September 25, 2023, he purchased a 2023 Rivian R1S (the “Vehicle”). Plaintiff alleges the Vehicle was delivered to Plaintiff with serious defects which were covered by the warranty. These include electrical defects, interior component defects, exterior and body component defects, and suspension system defects. Plaintiff asserts three causes of action against Rivian Automotive alleging violations of the Song-Beverly Act.

The Purchase Agreement

Rivian Automotive seeks to compel arbitration under the Purchase Agreement and Rivian Motor Vehicle Purchase Agreement executed by Plaintiff (the “Purchase Agreement”). The first paragraph of the Purchase Agreement states that it is a binding contract between Plaintiff and “RIVIAN, LLC (“RIVIAN”, “WE”, “US” OR “OUR”)”. Paragraph 16 provides in part:

16. DISPUTE RESOLUTION – ARBITRATION, CLASS ACTION WAIVER

Binding Arbitration. To the fullest extent permitted by applicable law and except for small claims or if You choose to opt-out as provided below, You and Rivian agree to resolve any claims, demands, disagreements, or disputes between us whether based in contract, tort, statute or otherwise arising from or related to this Agreement or Our relationship, including advertising and other communications between You and Rivian,